

25AVCV00623 25AVCV00623

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 25AVCV00623 Hearing Date: June 30, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

BRANDON DURAN, an individual,

Plaintiff,

v.

TOYOTA MOTOR SALES U.S.A. INC., a California Corporation,

Defendant.

Case Number 25AVCV00623

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: June 30, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is an action for breach of the Song-Beverly Consumer Warranty Act.

On May 13, 2025, Plaintiff Brandon Duran (Plaintiff) filed his complaint against Defendant Toyota Motor Sales U.S.A. (Defendant), asserting causes of action for (1) breach of express warranty and (2) breach of implied warranty. Plaintiff alleges that on October 4, 2022, he acquired a new 2023 Toyota GR68 (Vehicle) from Defendant. (Compl., ¶ 6.) On acquisition of the Vehicle, Plaintiff contends he received written warranties and other express and implied warranties from Defendant. (Compl., ¶ 7.) Plaintiff alleges the Vehicle was delivered to him with serious defects and nonconformities to warranty and developed other serious defects once in his possession, including engine defects, malfunctions, misadjustments, and nonconformities covered by the warranty which substantially impaired its value, use, and safety. (Compl., ¶¶ 9, 26.)

On June 12, 2025, Defendant filed its Answer.

On February 13, 2026, Defendant filed its present Motion to Deem Requests for Admission (RFAs) Admitted (Motion).

On June 22, 2026, Defendant filed its Notice of Non-Opposition to Defendant's Motion.

No opposition has been filed.

II. Legal Standard

Standard for Motion to Deem Requests for Admission Admitted – A party must respond to requests for admission within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) When a party fails to timely respond, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) An untimely responding party waives all objections, including privilege, unless they subsequently serve responses in substantial compliance with the Civil Discovery Act, and they demonstrate that their failure is the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290, subd. (a); § 2033.280, subd. (a).)

For untimely responses to requests for admission, the Court shall deem the requests for admission admitted unless the responding party serves a proposed code compliant response prior to the hearing. (Code Civ. Proc., § 2033.280, subd. (c).)

III. Discussion

Application – On July 10, 2025, Defendant served written discovery on Plaintiff, including its RFAs (Set One). (Guillot Decl., ¶ 2, Ex. A.) Plaintiff's responses were due no later than August 12, 2025, but to date, Defendant has still received no response. (Guillot Decl., ¶ 3.) On September 11, 2025, Defense counsel emailed Plaintiff's counsel regarding the lack of response and requested that responses be served no later than September 18, 2026. (Guillot Decl., ¶ 4, Ex. B.)

On September 17, 2025, Plaintiff's counsel responded via email to Defense counsel, informing him the Plaintiff's handling attorney was injured and requesting an extension for serving discovery responses to October 2, 2025, to which Defense counsel agreed. (Guillot Decl., ¶ 5, Ex. B.) On October 1, 2025, Plaintiff's counsel asked for an additional three week extension to respond to discovery. (Motion, p. 4:4-5.) Counsel held a teleconference on October 2, 2025 to discuss the

discovery issue, after which Defense counsel granted an extension to October 30, 2025. (Guillot Decl., ¶¶ 6-7, Ex. B.) On October 30, 2025, Plaintiff's counsel again requested an extension, which Defense counsel granted, with responses to be due November 17, 2025. (Guillot Decl., ¶ 8, Ex. B.) On November 14, 2025, Defense counsel sent a reminder to Plaintiff's counsel that responses were due by the following Monday. (Guillot Decl., ¶ 9, Ex. B.) Plaintiff never served any responses. (Motion, p. 4:11-12.) On February 4, 2026, Defense counsel again contacted Plaintiff's counsel to inquire about discovery, but never received a response. (Motion, p. 4:13-14.) It has been seven months since Plaintiff was served with written discovery responses, and following multiple extensions and attempts at resolving the issue among the parties and counsel, Plaintiff has not served any responses. (Guillot Decl., ¶ 10.)

Here, Plaintiff failed to timely serve discovery responses to Defendant's RFAs, propounded on July 10, 2025. California Code of Civil Procedure, section 2033.280 is clear that Plaintiff has waived any objection to the requests, and that the Court shall grant Defendant's request unless it finds Plaintiff has served a proposed response to Defendant's RFAs that is in substantial compliance with Section 2033.010 before the hearing on this matter. Plaintiff has filed no opposition to the present Motion and has not provided to the Court, nor served on Defendant, a proposed, substantially code compliant response prior to the hearing on this matter.

Accordingly, Defendant's motion is GRANTED.

Sanctions -- The Court must impose a monetary sanction on the party or attorney whose failure to serve timely requests for admission responses necessitated the motion. (Code Civ. Proc., § 2033.280, subd. (c).) "It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2033.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280(c).)

Defendant's counsel, the law firm of Beatty & Myers, LLP, provides legal services to Defendant at the rate of \$330 per hour for associates and \$355 per hour for partners. Defendant requests sanctions in the amount of \$2,562.50, comprised of \$1,104 for the drafting of the notice of motion and motion to compel responses, including points and authorities and supporting declarations (2.7 hours at \$330 per hour, 0.6 hours at \$355 per hour), \$408.50 for anticipated time reviewing Plaintiff's opposition and drafting a reply (0.7 hours at \$330, 0.5 hours at \$355), \$60 for the filing fee of the present Motion, and \$990 for anticipated time to prepare and attend the hearing on the Motion (3.0 hours at \$330.)

The imposition of monetary sanctions in this case is mandatory. The Court finds Defendant's request reasonable, but notes that no opposition was filed, and no reply was required. In light of the failure to oppose, the Court also reduces the time to prepare for and attend the hearing on the Motion from 3 hours to one. Thus, Defendant's request for monetary sanctions is GRANTED in the amount of \$1,494.00.

IV. Conclusion

Defendant Toyota Motor Sales U.S.A.'s Motion to Deem Requests for Admission Admitted is GRANTED.

Defendant Toyota Motor Sales U.S.A.'s request for monetary sanctions against Plaintiff Brandon Duron and his counsel of record, Caitlin J. Scott of American Lemon Law Group, LLP is GRANTED in the amount of \$1,494.00.

Plaintiff and his counsel are ordered to tender the full amount to Beatty & Myers, LLP within 30 days of this Order